

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1-2	16CV294537	4 TH Street SJ vs Metro Eight Properties	Line 1—Plaintiff moves this court to assign Defendant Milpitas Villas judgment debtor rights to payments of rents due. In this case a court trial was held and a verdict in favor of Plaintiff was entered in favor of Plaintiff for a total amount of damages of \$406,718.90. The trial court's judgment was affirmed by the court of appeals on March 19, 2026. Plaintiff is judgment creditor and sublessee under an existing sublease. None of balance has been paid off. Defendant Milpitas Villas submitted no objections to this motion. Under CCP 708.520(d), the court may assign right to payments to pay off judgment in full. Plaintiff's motion to assign Defendant Milpitas Vista's rights to past and future payments from to Plaintiff is GRANTED; Defendant Milpitas Vista is ordered restrained from encumbering or transferring any payments under this sublease until judgment is paid off. Line 2: Plaintiff moves this court to award attorney fees to Plaintiff. Plaintiff prevailed in its court trial and prevailed after Defendant appealed verdict. Plaintiff seeks costs of defending the appeal. No objection was filed by Defendant. Court finds attorney fees requested by Plaintiff of \$31,466.17 to be reasonable. Plaintiff's motion for attorney fees in the amount of \$31,466.17 is GRANTED.
9:00 3	23CV422621	Michael Hertz vs. Mark Olivarez, et.al.	Plaintiff moves this court to discharge referee and deposit the pre-buy out common interest rental funds into the Court's trust account. Defendant does not object to the discharge of referee. Plaintiff and Defendant entered into a stipulated agreement that the funds from a sale of a property would be held by a property manager who would be responsible for payouts. Some of the particular invoices are disputed. Thus Plaintiff's motion to discharge referee is GRANTED. However, Plaintiff's request to deposit the pre buyout common interest rental funds into the Court's trust account is DENIED.
9:00 4	23CV425697	Lara McCabe vs. Santa Clara County	Defendant moves this court to dismiss the case under CCP 472(b). In this case, the trial court granted Defendant's demurrer. The plaintiff successfully appealed the demurrer. Defendant argues that Plaintiff did not file its amended complaint within the 30 days deadline under CCP 472(b). Plaintiff persuasively argues that CCP 472b applies only when time to amend is given. In this case, the appellate opinion does not give any time for Plaintiff to amend. Defendant's motion is DENIED.
9:00 5-7	23CV428070	"Janine" Chun Lu vs. Marc Goubert,et.al.	See below
9:00 8	24CV430815	Karen Briggs vs. Ford Motor Company	Plaintiff moves this court for attorney fees as the prevailing party. Defendant filed no objections to this motion. Plaintiff's motion for attorney fees in the amount of 423,537.29 is GRANTED.
9:00 9-10	24CV436120	Kaelly Maycock vs. Matthew Santiago, et.al.	Defendant moves to quash Plaintiff's deposition subpoena for Uber Technologies. This court finds that the subpoena is narrowly tailored to the relevant issues of the case. A stipulated protective order is in effect to protect privileged interests. Defendant's motion to quash deposition subpoena is DENIED. Defendant moves to quash Plaintiff's deposition subpoena for Lyft. This court finds that the subpoena is narrowly tailored to the relevant issues of the case. A stipulated protective order is in effect to protect privileged interests. Defendant's motion to quash deposition subpoena for Lyft is DENIED.

9:00 11	24CV441131	Gray West Construction vs. Elks Lodge	Defendant petitions this court to compel plaintiff to respond to defendant's special interrogatories. Special Interrogatory Nos. 6 and 7 request identification of supporting documents to Plaintiff's damages claim. This court finds the request to be relevant and reasonable. Defendant's petition to compel as to Special Interrogatories 6 and 7 is GRANTED. Special Interrogatories Nos. 13, 14, and 15 seeks information to justify the damages sought by Plaintiff. This court agrees with the Defendant that Plaintiff's responses need to inform the Defendant of the actual defects alleged. Defendant's petition as to Special Interrogatories 13, 14, and 15 are GRANTED. Special Interrogatories 16, 17, 18 and 19 relate to misrepresentation and overcharge claims. Plaintiff's responses are not specific as to the fraud allegations. Defendant's petition as to Special Interrogatories 16, 17, 18 and 29 are GRANTED. Special Interrogatory No. 35 requests Plaintiff to identify proposed change order communications by bates range. This court finds the request to be relevant and reasonable. Defendant's petition as to Special Interrogatory No. 35 is GRANTED.
9:00 12	24CV449229	Andrew Little vs. Shuo Rong, et.al.	Defendant City of San Jose moves this Court to determine that the settlement entered into between the Plaintiff and the City was made in good faith under CCP 877 and 877.6(a)(1). Settlement was reached between the Plaintiff and the City regarding a traffic collision that occurred on November 8, 2023. Defendant filed no objection to this motion. Defendant's motion is GRANTED. Any current or future claim against the City of San Jose for equitable comparative contribution, partial or comparative indemnity, or comparable fault based reimbursement arising from the November 8, 2023 incident if ordered barred.
9:00 13	25CV467015	Dmitri Dolgov, et.al. vs. Jerry Kwok, et.al.	Plaintiff filed a petition to compel further responses to form and special interrogatories regarding Millenium Construction. Plaintiff's petition argues that Defendant failed properly identify photographs submitted in response to Form Interrogatory 311.1. Plaintiff's petition as to Form 311.1 is GRANTED. Plaintiff petitions this court to respond to a request for specific dates. Defendant argues that at all relevant times defendant was supervising work done. This answer does not appear to be sufficient. Plaintiff's petition as to further responses for Form 321.4 is GRANTED. Plaintiff petitions this court to compel Defendant for responses as to Special Interrogatories. This court agrees with Defendant that Plaintiff failed to submit a separate statement indicating individual interrogatories and responses and thus was not code compliant. Plaintiff's petition to compel further responses as to Special Interrogatories is DENIED. Monetary sanctions are DENIED. Plaintiff petitions this court to compel discovery of Pacific Realty. Plaintiff request contact information related to financial institutions used by Pacific Realty. Such information is not protected by a company's privacy interests. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 70, 82, and 103 are GRANTED. This court finds that Defendant Pacific Realty's responses to Special Interrogatories Nos. 24-27 are sufficient. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 24-27 are DENIED. Defendant seeks leave to amend answer to change Defendants answer to Form Interrogatory 326.1, Request for Admission No. 8 from DENY to ADMIT. Defendant's petition is GRANTED. Plaintiff petitions this court to compel further response to Form Interrogatory 326.1, Request for Admission No. 9. Defendant fails to identify documents, provide contact information, or specific facts to support its answer. Plaintiff's petition to compel further discovery for Form Interrogatory 326.1, RFA No. 9 is GRANTED. Monetary sanctions are DENIED.